

BNSS Bail Classification (Satender Antil & Frank Vitus 2025)

Formula: B • E • • • S • A • F • E (The BE-SAFE Bail Matrix) | Subject: Criminal Law & BNSS

I. COGNITIVE FORMULA & MNEMONIC BREAKDOWN

- â€ [B] - Bailable Offences: Right to bail is absolute under BNSS Section 478
- â€ [E] - Electronic Surveillance Bar: GPS pin-sharing is unconstitutional (Frank Vitus 2025)
- â€ [S] - Special Act Stringency: Twin conditions apply strictly under NDPS / PMLA
- â€ [A] - Arnesh Kumar Compliance: Mandatory notice under Section 35 for offences under 7 yrs
- â€ [F] - First-Time Offender: Mandatory release on personal bond under BNSS Sec 479
- â€ [E] - Expeditious Disposal: Bail applications must be determined within 2 weeks

II. PRACTICAL USAGE IN JUDICIAL EXAMINATIONS

Under BNSS 479, a first-time undertrial offender who has undergone one-third of the maximum imprisonment is entitled to mandatory release on bond.

III. FREQUENT PRELIMS & MAINS TRAPS TO AVOID

- â€ Always verify exceptions and statutory provisos before applying the direct formula.